

STATE OF NEW YORK

6460--A

2025-2026 Regular Sessions

IN SENATE

March 14, 2025

Introduced by Sen. CLEARE -- read twice and ordered printed, and when printed to be committed to the Committee on Codes -- recommitted to the Committee on Codes in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the penal law, in relation to sex trafficking of a vulnerable person

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 230.34-a of the penal law, as added by chapter 189
2 of the laws of 2018, is amended to read as follows:

3 § 230.34-a Sex trafficking of a child or vulnerable person.

4 1. A person is guilty of sex trafficking of a child when [~~he or she~~
5 such person, being twenty-one years old or more, intentionally advances
6 or profits from prostitution of another person and such person is a
7 child less than eighteen years old. Knowledge by the defendant of the
8 age of such child is not an element of this offense and it is not a
9 defense to a prosecution therefor that the defendant did not know the
10 age of the child or believed such age to be eighteen or over.

11 2. A person is guilty of sex trafficking of a vulnerable person when
12 he or she intentionally advances or profits from prostitution of another
13 person and such person is a vulnerable person, as such term is defined
14 in this section.

15 3. For purposes of this section:

16 (a) A person "advances prostitution" when, acting other than as a
17 person in prostitution or as a patron thereof, and with intent to cause
18 prostitution, [~~he or she~~ such person directly engages in conduct that
19 facilitates an act or enterprise of prostitution.

20 (b) A person "profits from prostitution" when, acting other than as a
21 person in prostitution receiving compensation for personally rendered
22 prostitution services, and with intent to facilitate prostitution, [~~he~~

EXPLANATION--Matter in italics (underscoring) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 ~~or she~~] such person accepts or receives money or other property pursuant
2 to an agreement or understanding with any person whereby [~~he or she~~]
3 such person participates in the proceeds of prostitution activity.

4 (c) A person is a "vulnerable person" when such person is mentally
5 disabled, mentally incapacitated, or physically helpless, as such terms
6 are defined in section 130.00 of this part.

7 Sex trafficking of a child or vulnerable person is a class B felony.

8 § 2. The penal law is amended by adding a new section 230.34-b to read
9 as follows:

10 § 230.34-b Predatory sex trafficking.

11 A person is guilty of predatory sex trafficking when, being eighteen
12 years old or more, such person commits the crime of sex trafficking of a
13 child or vulnerable person.

14 Predatory sex trafficking is a class A-II felony.

15 § 3. This act shall take effect on the ninetieth day after it shall
16 have become a law.